



CHAPTER li.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Dundee Royal Lunatic Asylum. [30th June 1903.] A.D. 1903.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.
2. This Act may be cited as the Dundee Royal Lunatic Asylum Order Confirmation Act 1903. Short title.

A.D. 1903.

SCHEDULE.

DUNDEE ROYAL LUNATIC ASYLUM.

Provisional Order to confirm an Agreement between the Dundee Royal Lunatic Asylum and the District Lunacy Board for the Dundee Lunacy District for the Sale to that Board of the Asylum known as Westgreen Lunatic Asylum and for other purposes.

WHEREAS the Dundee Royal Lunatic Asylum (herein-after in this Order called "the Corporation") was incorporated by Royal Charter granted by Her late Majesty Queen Victoria under the Seal appointed by the Treaty of Union to be kept and made use of in place of the Great Seal of Scotland dated the seventeenth and written to the Seal and registered and sealed on the twenty-seventh both days of May one thousand eight hundred and seventy-five with the powers privileges and authorities and subject to the declarations and others therein set forth :

And whereas the Corporation under the powers conferred on them by the said Royal Charter acquired certain lands in the county of Forfar and erected thereon an asylum for the reception and care of lunatics together with other buildings used in connexion therewith including a residence for the medical superintendent of the asylum all generally known by the name of "Westgreen Lunatic Asylum" (herein-after called "the asylum") and the asylum is at present used for the purposes aforesaid :

And whereas the existing accommodation for pauper lunatics of the Dundee lunacy district which district comprises the Dundee combination parish is insufficient and with the view of providing the additional accommodation necessary for such pauper lunatics the Corporation have agreed to sell to the district lunacy board for the said district (herein-after in this Order called "the district board") and the district board have agreed to purchase from the Corporation the asylum and the whole furniture and furnishings

[3 Edw. 7.] *Dundee Royal Lunatic Asylum Order* [Ch. li.]
Confirmation Act, 1903.

thereof (herein-after in this Order called “the asylum and others”) on the terms and conditions contained in the agreement entered into between the Corporation of the first part and the district board of the second part set forth in the schedule hereto : A.D. 1903.

And whereas it is expedient that the said agreement should be sanctioned and confirmed and that the other provisions in this Order contained should be enacted :

And whereas the objects aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Dundee Royal Lunatic Asylum (Sale) Order 1903. Short title.

2. The agreement entered into and executed by and between the Corporation of the first part and the district board of the second part set forth in the schedule to this Order is hereby sanctioned and confirmed and made binding on the Corporation and the district board respectively and on and after the completion of the purchase of the asylum and others by the district board as provided for by the said agreement the asylum and others shall vest in and be held and administered by the district board for the purposes and subject to the provisions of the Lunacy (Scotland) Acts 1857 to 1900. Confirmation of agreement for sale to and vesting of Asylum in district board.

3. The costs charges and expenses of and incident to the preparing and applying for and the confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of the moneys to be received by them under and in terms of the agreement hereby confirmed. Costs of Order.

[Ch. li.] *Dundee Royal Lunatic Asylum Order* [3 EDW. 7.]
Confirmation Act, 1903.

A.D. 1903.

The SCHEDULE referred to in the foregoing Order.

AGREEMENT between the DUNDEE ROYAL LUNATIC ASYLUM incorporated by Royal Charter herein-after called "the Sellers" of the first part and the DISTRICT LUNACY BOARD for the DUNDEE LUNACY DISTRICT herein-after called "the Purchasers" of the second part.

WHEREAS the sellers are the owners of the lands and others in the county of Forfar specified in the schedule annexed and subscribed as relative hereto with the whole buildings and erections thereon in which are embraced the main asylum for the accommodation of pauper lunatic patients with hospital and laundry the building recently erected for the accommodation of private lunatic patients and the residence of the medical superintendent and the electric installation and others all generally known as Westgreen Lunatic Asylum And whereas the purchasers are desirous of acquiring the said Westgreen Lunatic Asylum and they have with the approval of the General Board of Commissioners in Lunacy for Scotland offered to purchase the said lands and others with the whole buildings and erections thereon as aforesaid and the whole furniture and furnishings thereof all herein-after referred to as "Westgreen Asylum and others" from the sellers who have agreed to sell the same to them and it is proper that the terms and conditions of the sale and of various incidents attending the same should be reduced to writing Therefore the parties hereto have agreed and do hereby agree as follows viz. :—

First. The sellers hereby agree to sell to the purchasers who hereby agree to purchase from the sellers the said Westgreen Asylum and others at the price of ninety thousand pounds sterling.

Second. The date of the purchasers' entry shall if the sanction after-mentioned has been previously obtained be the term of Whitsunday nineteen hundred and three and if such sanction has not then been obtained then at the first term of Whitsunday or Martinmas happening immediately after such sanction has been obtained The said price shall be payable by the purchasers to the sellers on the said date of entry and shall bear interest at the rate of four per centum per annum from that date till paid The sellers shall insure and keep insured the said Westgreen Asylum and others against loss by fire until the said term of entry and should any fire occur before said term of entry the sellers shall out of the said insurance money make good any damage or loss caused thereby.

Third. The purchasers shall be bound to pay and free and relieve the sellers of all feu duties and public burdens and proportions thereof from and after the said date of entry and also of all casualties compositions duplications or periodical payments whatsoever payable subsequent to the said date of entry The sellers relieving the purchasers of all such due at or prior to the said date of entry.

A.D. 1903.

Sixth. The purchasers shall take over Dr. Rorie and the asylum staff at Westgreen or such of them as are willing to come who shall then become the officials and servants of the purchasers as at the said date of entry and shall pay and free and relieve the sellers of all salaries and wages and proportions thereof for the period from and after said date.

Eighth. In respect the sellers are the lessees of the farm of Whitelawston in the county of Forfar under lease between George David Clayhills Henderson Esquire of Hallyards and Invergowrie and the sellers of dates twenty third March and sixth April eighteen hundred and ninety-two which farm has been and is being worked by the sellers in connexion with the said asylum the sellers shall-with the landlord's consent assign in favour of the purchasers the said lease for the period thereof still to run after the said date of entry and

[Ch. li.] *Dundee Royal Lunatic Asylum Order* [3 EDW. 7.]
Confirmation Act, 1903.

A.D. 1903. the purchasers shall accept of such assignation and pay the rent of said farm for the year and crop current at the said date of entry and thereafter until the termination of the said lease. The purchasers shall also take over from the sellers along with the said lease the farm stocking and implements on the said farm and pay to the sellers within one month from the said date of entry the value thereof as such value (failing agreement) shall be fixed by two arbiters mutually chosen or by their oversman in the event of their differing in opinion. The purchasers shall also pay to the sellers within one month from said date of entry the value of all manures on the said farm unapplied to the land and of all labour and seed employed and used in the cultivation of the said farm for the year and crop current at the said date of entry as such value (failing agreement) shall be fixed by mutual valuation in manner before mentioned.

Ninth. The sellers shall at their own expense forthwith apply to Parliament either by way of Provisional Order or by Private Bill for inter alia confirmation of this agreement and sanction to carry its provisions into effect and the purchasers shall support such application and supply all information and assistance which the sellers may reasonably require of them.

Lastly. This agreement is made subject to the sanction of Parliament and to such alterations and modifications as the Secretary for Scotland or Parliament may think fit to make thereon under the application to be made to Parliament by the sellers as provided in article ninth hereof but if the Secretary for Scotland or Parliament make any material alterations or modifications on this agreement it shall be competent to either party to abandon or withdraw from the same. Further should such sanction not be obtained within two years from the date or last date hereof this agreement shall cease and come to an end without any claim for compensation by either party against the other.

In witness whereof these presents consisting of this and the two preceding pages together with the said schedule on the immediately succeeding page marked "Page Fourth" all written on stamped paper by George Lowson clerk to Thomas Thornton Son and Company solicitors Dundee are along with a duplicate thereof executed by both parties hereto at Dundee on the third day of November in the year nineteen hundred and two as follows vizt. the same are sealed with the common or corporate seal of the said The Dundee Royal Lunatic Asylum and subscribed by William Hunter and Alexander Bruce Gilroy two of the directors and by Robert Crawford Walker the Secretary all of the said The Dundee Royal Lunatic Asylum in name and on behalf of the said The Dundee Royal Lunatic Asylum and duly authorised to subscribe these presents on its behalf before these witnesses John Mackintosh Bruce clerk to the said Robert Crawford Walker and James Bell Patterson clerk to the said Thomas Thornton Son and Company and the same are subscribed by Duncan Macdonald Thomas Barron Taylor David Duncan Daniel John McKinnon Alexander Thomson Lickley and James Robertson all members of the said district lunacy board for the Dundee

[3 EDW. 7.] *Dundee Royal Lunatic Asylum Order* [Ch. li.]
Confirmation Act, 1903.

Lunacy District and by James Kyd clerk to the said district lunacy board all in name and on behalf of the said district lunacy board and duly authorised by the said district lunacy board to subscribe these presents on its behalf before these witnesses James Wilson and Henry Wallace David both clerks in the office of the Dundee Combination Parish Council Bell Street Dundee. A.D. 1903



J. M. BRUCE Witness.
JAS. B. PATTERSON Witness.

JAMES WILSON Witness.
H. W. DAVID Witness.

WILLIAM HUNTER Director.
A. B. GILROY Director.
ROBERT C WALKER Secy.
D. MACDONALD.
THOS. B. TAYLOR.
DAVID DUNCAN.
D. J. M'KINNON.
A. T. LICKLEY.
JAMES ROBERTSON
JAMES KYD Clerk.

SCHEDULE referred to in the foregoing Agreement.

All and whole the lands and farm of Westgreen and that part and portion of the lands and farm of Whitelawston extending to seventeen acres and lying adjacent to the said lands and farm of Westgreen and which several lands lie together and are delineated and coloured red on the plan annexed and signed as relative to the feu contract entered into between George David Clayhills Henderson Esquire of Hallyards and Invergowrie on the one part and the Dundee Royal Lunatic Asylum incorporated by Royal Charter on the other part dated seventeenth November and eighth December and recorded in the division of the General Register of Sasines applicable to the county of Forfar eighteenth December all in the year eighteen hundred and seventy six bounded the said several lands as follows videlicet on the north by the road from Kirkton of Liff to Lochee on the west by the road leading from the Dundee and Invergowrie turnpike road to Liff on the south by the centre of a ditch separating the said lands hereby described from the property of the Right Honourable Lady Gray and on the east by a straight line running from the south-east corner of Westgreen and the south point of the said seventeen acres due north till it joins the said road from Kirkton of Liff to Lochee which several lands above described are parts and portions of the lands and barony

[Ch. li.] *Dundee Royal Lunatic Asylum Order* [3 EDW. 7.]
Confirmation Act, 1903.

A.D. 1903. of Invergowrie and of the lands of Easter Liff alias Whitelawston all in the county of Forfar being the lands and barony and lands particularly described in the special and general service of the said George David Clayhills Henderson as heir therein of his late uncle Alexander Clayhills Esquire of Invergowrie recorded with warrant of registration thereon on behalf of the said George David Clayhills Henderson in the new General Register of Sasines &c. the fifteenth day of November eighteen hundred and sixty-five including in the said several lands above described the farm road which at the date of the said feu contract between the said George David Clayhills Henderson and the said The Dundee Royal Lunatic Asylum ran from west to east through the farm of Westgreen and communicated with the adjacent farm of Whitelawston.

Seal of the
Corporation of
The Dundee Royal
Lunatic Asylum.

J. M. BRUCE Witness.
JAS. B. PATTERSON Witness.

JAMES WILSON Witness.
H. W. DAVID Witness.

WILLIAM HUNTER Director.
A. B. GILROY Director.
ROBERT C. WALKER Secy.
D. MACDONALD.
THOS. B. TAYLOR.
DAVID DUNCAN.
D. J. M'KINNON.
A. T. LICKLEY.
JAMES ROBERTSON.
JAMES KYD Clerk.

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